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Application No. 05 727 328.6 - 1216	Ref. P714963EP-PCT/J	Date 23.03.2011
Applicant MORINAGA MILK INDUSTRY CO., LTD.		

Communication pursuant to Article 94(3) EPC

The examination of the above-identified application has revealed that it does not meet the requirements of the European Patent Convention for the reasons enclosed herewith. If the deficiencies indicated are not rectified the application may be refused pursuant to Article 97(2) EPC.

You are invited to file your observations and insofar as the deficiencies are such as to be rectifiable, to correct the indicated deficiencies within a period

of 4 months

from the notification of this communication, this period being computed in accordance with Rules 126(2) and 131(2) and (4) EPC. One set of amendments to the description, claims and drawings is to be filed within the said period on separate sheets (R. 50(1) EPC).

If filing amendments, you must identify them and indicate the basis for them in the application as filed. Failure to meet either requirement may lead to a communication from the Examining Division requesting that you correct this deficiency (R. 137(4) EPC).

Failure to comply with this invitation in due time will result in the application being deemed to be withdrawn (Art. 94(4) EPC).



Jakobs, Andreas
Primary Examiner
For the Examining Division

Enclosure(s): 3 page/s reasons (Form 2906)

**SUPPLEMENTARY
EUROPEAN SEARCH REPORT**

Application Number
EP 05 72 7328

DOCUMENTS CONSIDERED TO BE RELEVANT			
Category	Citation of document with indication, where appropriate, of relevant passages	Relevant to claim	CLASSIFICATION OF THE APPLICATION (IPC)
X	AKINMOLADUN AFOLABI C ET AL: "Effect of Aloe barbadensis on the lipid profile and fasting blood sugar concentration of rabbits fed high cholesterol diet" GLOBAL JOURNAL OF PURE AND APPLIED SCIENCES, GLOBAL JOURNAL SERIES, NG, vol. 10, no. 1, 1 January 2004 (2004-01-01), pages 139-142, XP008122818 ISSN: 1118-0579 * the whole document *	1-19	INV. A61K31/575 A23L1/30 A61K36/18 A61P3/10 C07J53/00
X	----- DATABASE MEDLINE [Online] US NATIONAL LIBRARY OF MEDICINE (NLM), BETHESDA, MD, US; August 1985 (1985-08), AGARWAL O P: "Prevention of atheromatous heart disease." XP002587669 Database accession no. NLM2864002 * abstract *	1-19	
X	& ANGIOLOGY AUG 1985 LNKD- PUBMED:2864002, vol. 36, no. 8, August 1985 (1985-08), pages 485-492, ISSN: 0003-3197	1-19	TECHNICAL FIELDS SEARCHED (IPC) A61K
X	----- DATABASE WPI Week 200426 Thomson Scientific, London, GB; AN 2004-270434 XP002587670 & CN 1 468 607 A (SONG Y) 21 January 2004 (2004-01-21) * abstract *	1-19	
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The supplementary search report has been based on the last set of claims valid and available at the start of the search.			
Place of search The Hague		Date of completion of the search 17 June 2010	Examiner Jakobs, Andreas
CATEGORY OF CITED DOCUMENTS X : particularly relevant if taken alone Y : particularly relevant if combined with another document of the same category A : technological background O : non-written disclosure P : intermediate document		T : theory or principle underlying the invention E : earlier patent document, but published on, or after the filing date D : document cited in the application L : document cited for other reasons ----- & : member of the same patent family, corresponding document	

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EPO FORM 1503 03.82 (P04C04)

**SUPPLEMENTARY
EUROPEAN SEARCH REPORT**

Application Number
EP 05 72 7328

DOCUMENTS CONSIDERED TO BE RELEVANT			
Category	Citation of document with indication, where appropriate, of relevant passages	Relevant to claim	CLASSIFICATION OF THE APPLICATION (IPC)
X	MASCOLO NICOLA ET AL: "Healing powers of aloes" MEDICINAL AND AROMATIC PLANTS--INDUSTRIAL PROFILES, CRC PRESS, GB, vol. 38, 1 January 2004 (2004-01-01), pages 209-238, XP008122820 ISSN: 1027-4502 * abstract * * page 221, paragraph 4 - page 222, paragraph 2; table 9.1; 9.3; 9.4; 9.5 *	1-19	
X,P	JP 2005 068132 A (ENKAKU IRYO KENKYUSHO KK) 17 March 2005 (2005-03-17) * the whole document *	1-6, 8-13, 15-19	
X	"Appiraka Chendooram" KEY ATTRIBUTES OF THDL,, 1 January 1879 (1879-01-01), pages 1-3, XP007913282 * the whole document *	1-19	
X	"Nuskha-e-zulal" KEY ATTRIBUTES OF TKDL,, 1 January 1899 (1899-01-01), pages 1-2, XP007913278 * the whole document *	1-19	
T	TANAKA MIYUKI ET AL: "Identification of five phytosterols from Aloe vera gel as anti-diabetic compounds." BIOLOGICAL & PHARMACEUTICAL BULLETIN JUL 2006 LNKD- PUBMED:16819181, vol. 29, no. 7, July 2006 (2006-07), pages 1418-1422, XP002587671 ISSN: 0918-6158 * the whole document *	1-19	
The supplementary search report has been based on the last set of claims valid and available at the start of the search. -/--			
Place of search		Date of completion of the search	Examiner
The Hague		17 June 2010	Jakobs, Andreas
CATEGORY OF CITED DOCUMENTS X : particularly relevant if taken alone Y : particularly relevant if combined with another document of the same category A : technological background O : non-written disclosure P : intermediate document T : theory or principle underlying the invention E : earlier patent document, but published on, or after the filing date D : document cited in the application L : document cited for other reasons & : member of the same patent family, corresponding document			

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EPO FORM 1503 03.82 (P04C04)

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EUROPEAN SEARCH REPORT**

Application Number
EP 05 72 7328

DOCUMENTS CONSIDERED TO BE RELEVANT			
Category	Citation of document with indication, where appropriate, of relevant passages	Relevant to claim	CLASSIFICATION OF THE APPLICATION (IPC)
X	BEPPU H ET AL: "Hypoglycaemic and antidiabetic effects in mice of Aloe arborescens Miller var. natalensis Berger" PHYTOTHERAPY RESEARCH 1993 GB, vol. 7, no. SPEC. ISS., 1993, pages S37-S42, XP002587672 ISSN: 0951-418X * the whole document * -----	1-19	
			TECHNICAL FIELDS SEARCHED (IPC)
The supplementary search report has been based on the last set of claims valid and available at the start of the search.			
Place of search		Date of completion of the search	Examiner
The Hague		17 June 2010	Jakobs, Andreas
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EPO FORM 1503 03.82 (P/AC04)

**ANNEX TO THE EUROPEAN SEARCH REPORT
ON EUROPEAN PATENT APPLICATION NO.**

EP 05 72 7328

This annex lists the patent family members relating to the patent documents cited in the above-mentioned European search report.
The members are as contained in the European Patent Office EDP file on
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17-06-2010

Patent document cited in search report		Publication date	Patent family member(s)	Publication date
CN 1468607	A	21-01-2004	NONE	

JP 2005068132	A	17-03-2005	NONE	
